WHO IS AFRAID OF A UCC?

The constitutional objective of the uniform civil code is to frame religion-neutral common laws on marriage, divorce and inheritance for all Indians

By Kaushik Deka

ON APRIL 22, Union home minister Amit Shah, while addressing a BJP meeting in Bhopal, reportedly told his colleagues that it was time to focus on the Uniform Civil Code (UCC). Almost on cue, the next day, Uttar Pradesh deputy chief minister Keshav Prasad Maurya said that the BJP government in the state was considering implementing the UCC. In next-door Uttarakhand, the BJP state cabinet is already forming a committee of experts for the same. Shah's intent seems clear—Uttarakhand is a pilot project for what will soon have a national footprint.

The UCC has been part of the BJP manifesto since 1998. Nearly two decades later, the saffron party seems to be inching towards implementing the contentious agenda.

Having a common set of laws governing marriage, divorce, adoption and succession for all Indians, irrespective of religion—essentially one civil law applicable to all citizens—is an ideal mentioned in the Directive Principles and was seen as a desirable norm by Dr B.R. Ambedkar, the architect of the Constitution, though he felt the new republic was not ready for it at the time.

Is it ready now? The Supreme Court has occasionally answered in the affirmative: in its Shah Bano verdict in 1985; in 2015, as it spoke of the "total confusion" in civil laws across religions; and in 2019. In February, it also transferred cases on the UCC in various high courts to itself and tagged all of them for final adjudication. In August 2018, the Law Commission had struck a different note, though, saying a UCC was "neither necessary nor desirable at this stage". This was in a paper on 'Reform of Family Law' prepared after the Union ministry of law and justice asked it in 2016 to examine the issue. The paper wanted discrimination against women within communities removed rather than looking for equality between communities in terms of family law. The final report is awaited. Union law minister Kiren Rijiju says when it is out, the Centre will start consultations with all the stakeholders. But since Justice B.S. Chauhan retired as chairperson in 2018, no appointment has been made to the Law Commission. The Centre, clearly, is treading cautiously.

Can a state frame its own UCC? Well, subjects such as marriage, divorce, adoption and succession are in the Concurrent List: both the Centre and the states can legislate on them. Does that include the power to frame a UCC? Constitution expert and former Lok Sabha secretary general P.D.T. Achary believes so, while former Union law secretary P.K. Malhotra feels only Parliament is competent to make such a law—since Article 44, the relevant Directive Principle, refers to all citizens across India. Uttarakhand has a precedent, though. Goa already has a Common Civil Code—a remnant of the Portuguese Civil Code of 1867. Not a uniform law in the true sense, it allows bigamy for Hindus in specific circumstances. The code also allows the church to both sanction and an-